



U.S. Department  
of Transportation

**Pipeline and Hazardous  
Materials Safety  
Administration**

**July 10, 2024**

1200 New Jersey Avenue, SE  
Washington, DC 20590

DOT-SP 21246

FIRST REVISION

**EXPIRATION DATE: 2028-06-30**

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Ensign-Bickford Aerospace & Defense Co  
Simsbury, CT
2. PURPOSE AND LIMITATION:
  - a. This special permit authorizes the transportation in commerce of subassembly components of previously approved assemblies without subassembly components being tested, classed, and approved. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
  - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
  - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.320(a) in that packages must be marked with the EX number and §§ 173.51(a) and 173.56(b) in that the subassembly component explosives must be tested, classed, and approved, except as provided herein.
5. BASIS: This special permit is based on the application of Ensign-Bickford Aerospace & Defense Co dated July 10, 2024, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

| Hazardous Materials Description |                        |                       |               |
|---------------------------------|------------------------|-----------------------|---------------|
| Proper Shipping Name            | Hazard Class/ Division | Identification Number | Packing Group |
| Articles, explosive, n.o.s.     | 1.1D                   | UN0463                | N/A           |
| Articles, explosive, n.o.s.     | 1.2C                   | UN0466                | N/A           |
| Articles, explosive, n.o.s.     | 1.2D                   | UN0467                | N/A           |
| Articles, explosive, n.o.s.     | 1.2E                   | UN0468                | N/A           |
| Articles, explosive, n.o.s.     | 1.3C                   | UN0470                | N/A           |

a. Articles must be subassembly components of approved explosives as specified in the additional information submitted June 15, 2021, and on file with the Office of Hazardous Materials Safety (OHMS).

b. Except as specified in paragraph 6.c., the subassembly components must be classed as the same division and compatibility group as the approved explosives. For example, a subassembly component of an approved Division 1.1D explosive must be classed as Division 1.1D.

c. For approved explosives classed as Division 1.4B, 1.4C, 1.4D, 1.4G, or 1.4S, the subassembly components must be classed as Division 1.3C.

7. SAFETY CONTROL MEASURES:a. PACKAGING:

(1) Each subassembly component must be packaged in the same UN standard packaging type as was utilized for the previously approved assembly, as described in the application dated May 25, 2021, and additional information submitted June 15, 2021, and on file with OHMS.

(2) Each packaging may have internal modifications (cradles, inserts, etc.) and/or contain additional dunnage as necessary to secure the subassemblies and prevent movement during transport.

b. OPERATIONAL CONTROLS:

(1) Transportation of subassembly components under the terms of this special permit is limited to private carriage.

(2) Transportation is only authorized between the Ensign-Bickford Aerospace & Defense Co manufacturing facility and storage magazines approximately 400 feet distant as specified in the application dated May 25, 2021, and additional information submitted June 15, 2021, and on file with OHMS.

(3) Each shipment must be accompanied by trained personnel with knowledge of the hazards imposed by the subassembly components.

c. MARKING REQUIREMENTS: Each package must be marked: “DOT-SP 21246”.

8. SPECIAL PROVISIONS: A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

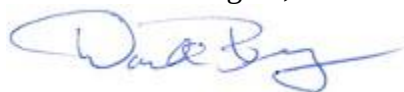
No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005),

amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover  
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Casey Chambers/KLEM